

HOUSE No.



MAURA T. HEALEY
GOVERNOR

OFFICE OF THE GOVERNOR
COMMONWEALTH OF MASSACHUSETTS
STATE HOUSE · BOSTON, MA 02133
(617) 725-4000

KIMBERLEY DRISCOLL
LIEUTENANT GOVERNOR

August 14, 2025

To the Honorable Senate and House of Representatives,

I am filing for your consideration a bill entitled An Act Making Appropriations for Fiscal Year 2025 (FY25) to Provide for Supplementing Certain Existing Appropriations and for Certain Other Activities and Projects.

This legislation appropriates \$2.45 billion gross/\$947 million net to meet critical budget needs and close Massachusetts's Fiscal Year 2025 (FY25) on balance. Our proposal also strengthens the state's ability to weather economic uncertainty by building our reserves, maximizing revenues from the voter-approved Fair Share surtax, and creating a new fund dedicated to responding to federal actions.

Taken together, this budget proposal addresses costs incurred in FY25, which ended on June 30, and other critical needs that will allow our administration to advance key priorities. The MassHealth program accounts for the largest of these deficiencies, due to rising caseloads, patient health acuity and unforeseen increases in the costs to provide care. This budget recommends \$2.046 billion gross to pay for services provided through MassHealth in FY25, at a net cost to the state of \$539.7 million after federal reimbursements. We recognize the importance of continuing to manage spending in this critical safety net program and adjusting to the changing Medicaid landscape. This budget also allocates:

- \$162.7 million for a reserve to cover costs accrued by Massachusetts Sheriffs
- \$75 million for housing preservation and stabilization

- \$60.7 million for snow and ice removal
- \$18.5 million for public health hospital operations
- \$12 million for Universal School Meals
- \$7.2 million for Department of Correction (DOC) Facilities operations
- \$3.5 million for State Police operations
- \$700,000 for the Suffolk County District Attorney
- \$20 million for the Massachusetts Life Science Center
- \$20 million to support costs associated with hosting the 2026 World Cup
- \$6.8 million for the Clean Water Trust Fund
- \$5 million for direct supports to reproductive health providers at risk of losing federal funding

Earlier this summer, I filed a \$130 million supplemental budget bill for FY26 that would create new flexible resources and expand our administration's toolkit for responding to budget pressures created by federal actions in the fiscal year ahead. The bill I'm filing today continues to strengthen Massachusetts's financial footing so that we can thrive in an uncertain future by building our reserves, including flexible funds that can be easily accessed to mitigate negative impacts on state programming. We propose a \$125 million deposit into the state's Stabilization Fund to continue to build our most important bulwark against an economic downturn, bringing the balance to \$8.23 billion. We are also recommending the creation of a new Economic Resiliency and Federal Response Fund and directing a portion of excess capital gains and any consolidated net surplus from FY25 to this new fund. This fund will provide an estimated \$250 million in uncommitted resources to ensure that the Commonwealth remains resilient against the negative impacts of federal budgetary and policy decisions.

Additionally, we are proposing to transfer \$150 million of excess FY25 Fair Share surtax revenues into the Student Opportunity Act Investment Fund to support our administration's commitment to providing world-class education in every community. As of July 21, the Department of Revenue has certified receipt of \$2.98 billion in surtax collections in FY25, which is \$1.7 billion above our spending threshold. By transferring a portion of these excess collections to the SOA Investment Fund, we are supporting implementation of the SOA in Massachusetts communities and continuing to meet our commitment to our students.

I am also filing several outside sections in this legislation, including provisions that will increase government transparency, support public health, and streamline policy implementation. Among these outside sections is a proposal that gives the Massachusetts Department of Public

Health the authority to decouple immunization recommendations and requirements in Massachusetts from federal standards if necessary to maintain public health. This legislation is one of several actions our administration has taken in recent months to protect Massachusetts's ability to provide necessary medical care despite actions at the federal level. With thanks to the Legislature, this includes the recently signed provision ensuring the Department of Public Health is able to distribute important prescription drugs.

Another important time-sensitive provision that I have filed relates to the preservation of federal support for our Medicaid program. This proposal updates the current MCO assessment to meet new federal requirements. I am also filing language that aligns with critical recommendations made by the Special Commission on State Institutions, including a proposal to make state institutional records over 75 years of age public. The goal of these provisions is to make institutional records easier for loved ones and historians to access while respecting patient privacy concerns.

We are also proposing to return to the historical practice in place prior to enactment of the Work and Family Mobility Act (WFMA) of allowing the RMV to make public its driving records that detail a person's history of motor vehicle violations, with new guardrails included to protect privacy and prohibit broad non-driver specific requests.

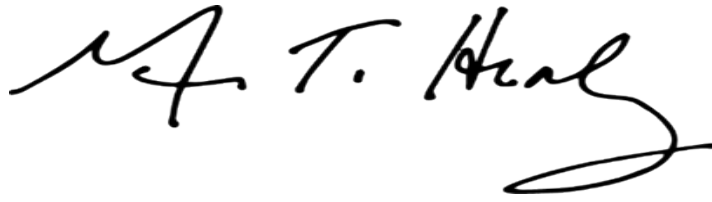
Due to uncertainty surrounding federal permitting, the bill also proposes more flexibility in the state's timeline for offshore wind procurements in response to changing market conditions. The supplemental budget extends the deadline for the state to contract for 5,600 MW of offshore wind from 2027 to 2029. Additionally, the bill removes the requirement that a solicitation be conducted every 24 months.

Another outside section in this bill would set Sept. 1, 2026 as the statewide primary election day, ensuring that the Secretary of State can meet all state and federal ballot deadlines.

I also want to reiterate my support for bills recently filed by our administration and currently pending before the Legislature. As mentioned, the FY26 supplemental budget bill that I filed in tandem with signing the FY26 budget earlier this summer provides critical resources to help Massachusetts manage the unknown in the coming months. There are also proposals filed in separate vehicles and still before the Legislature, such as increasing construction thresholds and providing funding to support ongoing celebrations of our country's 250th anniversary, of which I would appreciate continued consideration.

I respectfully urge you to support my administration's efforts to close the books for Fiscal Year 2025 in a timely fashion by enacting this legislation promptly. Sufficient revenues are available to finance the appropriations and other spending we have proposed in this bill, and we are eager to keep Massachusetts strong and financially solid as we transition into the next fiscal year.

Respectfully submitted,

A handwritten signature in black ink, reading "M. T. Healey". The signature is fluid and cursive, with a long, sweeping underline that extends to the right.

Maura T. Healey,
Governor

HOUSE No.

Message from Her Excellency the Governor submitting requests for making appropriations for the fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act making appropriations for the fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects.

Whereas, The deferred operation of this act would tend to defeat its purposes, which are forthwith to make supplemental appropriations for fiscal year 2025 and to make certain changes in law, each of which is immediately necessary to carry out those appropriations or to accomplish other important public purposes, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. To provide for supplementing certain items in the general appropriation act
2 and other appropriation acts for fiscal year 2025, the sums set forth in section 2 are hereby
3 appropriated from the General Fund or the Transitional Escrow Fund established in section 16 of
4 chapter 76 of the acts of 2021, as amended by section 4 of chapter 98 of the acts of 2022, unless
5 specifically designated otherwise in this act or in those appropriation acts, for the several
6 purposes and subject to the conditions specified in this act or in those appropriation acts, and
7 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,
8 2025. These sums shall be in addition to any amounts previously appropriated and made

9 available for the purposes of those items. These sums shall be made available through the fiscal
10 year ending June 30, 2026.

11 SECTION 2.

12 DISTRICT ATTORNEYS

13 *Suffolk District Attorney's Office*

14 0340-0100 Suffolk District Attorney..... \$700,000

15 EXECUTIVE OFFICE OF EDUCATION

16 *Department of Elementary and Secondary Education*

17 1596-2422 School Meals.....\$12,000,000

18 Education and Transportation Fund...100%

19 EXECUTIVE OFFICE OF ENERGY AND ENVIRONMENTAL AFFAIRS

20 *Office of the Secretary*

21 1599-0093 Clean Water Trust Contract Assistance..... \$6,779,246

22 EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

23 *Office of the Secretary*

24 4000-0700 MassHealth Fee for Service Payments..... \$2,046,164,359

25 *Department of Public Health*

26 4590-0915 Public Health Hospitals..... \$18,500,000

27 EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY

28 *Department of State Police*

29 8100-1001 Department of State Police..... \$3,500,255

30 *Department of Correction*

31 8900-0001 Department of Correction Facility Operations..... \$7,184,865

32 SECTION 2A. To provide for certain unanticipated obligations of the commonwealth, to
33 provide for an alteration of purpose for current appropriations, and to meet certain requirements
34 of law, the sums set forth in this section are hereby appropriated from the General Fund or the
35 Transitional Escrow Fund established in section 16 of chapter 76 of the acts of 2021, as amended
36 by section 4 of chapter 98 of the acts of 2022, unless specifically designated otherwise in this
37 section, for the several purposes and subject to the conditions specified in this section, and
38 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,
39 2025. Except as otherwise stated, these sums shall be made available through the fiscal year
40 ending June 30, 2026.

41 EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE

42 *Department of Revenue*

43 1233-1818 For fiscal year 2023 and fiscal year 2024 payments due to cities and towns
44 pursuant to section 5 of chapter 64N of the General Laws.....\$1,250,000

45 Marijuana Regulation Fund...100%

46 *Reserves*

EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

Office of the Secretary

4000-0010 For direct supports to reproductive health care providers to maintain continuity of access to services at risk of federal funding reductions including, but not limited to, Medicaid reimbursements.....\$5,000,000

SECTION 2B. To provide for supplementing certain intragovernmental chargeback authorizations in the general appropriation act and other appropriation acts for fiscal year 2025, to provide for certain unanticipated intragovernmental chargeback authorizations, to provide for an alteration of purpose for current intragovernmental chargeback authorizations and to meet certain requirements of law, the sum set forth in this section is hereby authorized from the Intragovernmental Service Fund for the several purposes specified in this section or in the appropriation acts and subject to the provisions of law regulating the disbursement of public funds for the fiscal year ending June 30, 2025. This sum shall be in addition to any amounts previously authorized and made available for the purposes of this item. These sums shall be made available through the fiscal year ending June 30, 2026.

TREASURER AND RECEIVER-GENERAL

Office of the Treasurer and Receiver-General

0699-0018 Agency Debt Service Programs..... \$21,000,000

SECTION 2C.I. For the purpose of making available in fiscal year 2026 balances of appropriations which otherwise would revert on June 30, 2025, the unexpended balances of the appropriations listed below, not to exceed the amount specified below for each item, are hereby

re-appropriated for the purposes of and subject to the conditions stated for the corresponding item in section 2 or 2F of chapter 140 of the acts of 2024. However, for items which do not appear in section 2 or 2F of the general appropriation act, the amounts in this section are re-appropriated for the purposes of and subject to the conditions stated for the corresponding item in section 2 or 2A of this act or in prior appropriation acts. Amounts in this section are re-appropriated from the fund or funds designated for the corresponding item in section 2 or 2F of said chapter 140; provided, however, that for items which do not appear in section 2 or 2F of said chapter 140, the amounts in this section are re-appropriated from the fund or funds designated for the corresponding item in section 2 through 2F of this act or in prior appropriation acts. The unexpended balance of each appropriation in the Massachusetts management accounting and reporting system with a secretariat code of 01 or 17 is hereby re-appropriated for the purposes of and subject to the conditions stated for the corresponding item in said section 2 of said chapter 140. The sums reappropriated in this section shall be in addition to any amounts available for said purposes.

JUDICIARY

Supreme Judicial Court

0320-0003	Supreme Judicial Court.....	\$400,000
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Appeals Court

0322-0100	Appeals Court.....	\$175,000
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DISTRICT ATTORNEYS

District Attorneys' Association

109	0340-9111	District Attorneys' Association.....	\$307,101
110		TREASURER AND RECEIVER-GENERAL	
111		<i>Office of the Treasurer and Receiver-General</i>	
112	0610-2000	Welcome Home Bill Bonus Payments.....	\$600,000
113		POLICE REFORM COMMISSIONS	
114	0800-0000	POST Commission.....	\$73,853
115		OFFICE OF THE CHILD ADVOCATE	
116	0930-0100	Office of the Child Advocate.....	\$200,000
117	0930-0101	Center on Child Wellbeing and Trauma.....	\$1,900,000
118		CENTER FOR HEALTH INFORMATION AND ANALYSIS	
119	4100-0060	Center for Health Information and Analysis.....	\$693,500
120	4100-0063	Betsy Lehman Center.....	\$395,450
121		EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE	
122		<i>Health Policy Commission</i>	
123	1450-1200	Health Policy Commission.....	\$750,000
124		<i>Reserves</i>	
125	1599-4448	Collective Bargaining Reserve.....	\$34,000,000

126		EXECUTIVE OFFICE OF TECHNOLOGY SERVICES AND SECURITY	
127	1790-1700	Core Technology Services and Security.....	\$355,089
128		EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES	
129		<i>Department of Transitional Assistance</i>	
130	4400-1000	Dept of Transitional Assistance Administration and	
131		Operation.....	\$2,813,484
132		<i>Massachusetts Commission for the Deaf and Hard of Hearing</i>	
133	4125-0100	Massachusetts Commission for the Deaf and Hard of	
134		Hearing.....	\$170,000
135		EXECUTIVE OFFICE OF VETERANS' SERVICES	
136		<i>Veterans' Services</i>	
137	1410-0630	Agawam and Winchendon Veterans' Cemeteries.....	\$185,000
138		<i>Veterans' Home in Chelsea</i>	
139	4180-0100	Veterans' Home in Chelsea Administration and	
140		Operations.....	\$916,018
141		<i>Veterans' Home in Holyoke</i>	
142	4190-0100	Veterans' Home in Holyoke Administration and	
143		Operations.....	\$150,018

144		MASSACHUSETTS DEPARTMENT OF TRANSPORTATION	
145	1596-2401	Federal Matching Funds.....	\$23,000,000
146	1596-2406	Regional Transit Funding and Grants.....	\$10,155,416
147		EXECUTIVE OFFICE OF ECONOMIC DEVELOPMENT	
148		<i>Division of Insurance</i>	
149	7006-0020	Division of Insurance.....	\$1,274,008
150		Massachusetts Marketing Partnership	
151	7008-0900	Massachusetts Office of Travel and Tourism.....	\$100,000
152		EXECUTIVE OFFICE OF HOUSING AND LIVABLE COMMUNITIES	
153	7004-0102	Homeless Individual Shelters.....	\$2,100,000
154		EXECUTIVE OFFICE OF EDUCATION	
155		<i>Department of Early Education and Care</i>	
156	3000-1000	Department of Early Education and Care.....	\$7,500,000
157		<i>Department of Elementary and Secondary Education</i>	
158	7061-9805	Teacher Diversity Initiative.....	\$8,300,000
159	1596-2436	Mental Health Supports and Wraparounds.....	\$4,657,078
160		<i>Department of Higher Education</i>	

161 7066-0025 Performance Management Set Aside.....\$2,000,000

162 EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY

163 *Department of State Police*

164 8100-0515 New State Police Class..... \$9,600,000

165 *Department of Fire Services*

166 8324-0000 Department of Fire Services Administration..... \$560,750

167 8324-0050 Local Fire Department Projects and Grants.....\$250,000

168 SECTION 2C.II. For the purpose of making available in fiscal year 2026 balances of
169 retained revenue and intragovernmental chargeback authorizations which otherwise would revert
170 on June 30, 2025, the unexpended balances of the authorizations listed below, not to exceed the
171 amount specified below for each item, are hereby re-authorized for the purposes of and subject to
172 the conditions stated for the corresponding item in sections 2 through 2F of chapter 140 of the
173 acts of 2024. However, for items which do not appear in sections 2 through 2F of said chapter
174 140, the amounts in this section are re-authorized for the purposes of and subject to the
175 conditions stated for the corresponding item in sections 2 through 2F of this act or in prior
176 appropriation acts. Amounts in this section are re-authorized from the fund or funds designated
177 for the corresponding item in sections 2 through 2F of the general appropriation act; however, for
178 items which do not appear in sections 2 through 2F of the general appropriation act, the amounts
179 in this section are re-authorized from the fund or funds designated for the corresponding item in
180 sections 2 through 2F of this act or in prior appropriation acts. The sums re-authorized in this
181 section shall be in addition to any amounts available for those purposes.

182 MASSACHUSETTS COMMISSION AGAINST DISCRIMINATION

183 0940-0103 Equal Employment Opportunity Commission Retained

184 Revenue..... \$1,205,504

185 EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE

186 *Operational Services Division*

187 1775-0800 Chargeback for Purchase Operation and Repair of State

188 Vehicles.....\$200,000

189 EXECUTIVE OFFICE OF ECONOMIC DEVELOPMENT

190 *Office of the Secretary*

191 7002-0018 Chargeback for Economic Development IT Costs..... \$3,846,468

192 EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY

193 *Department of Correction*

194 8900-0021 Chargeback for Prison Industries and Farm Program.....\$430,000

195 SECTION 3. Section 44 of chapter 7C of the General Laws, as appearing in the 2022

196 Official Edition, is hereby amended by striking out, in lines 1 and 11, each time it appears, the

197 figure “58” and inserting in place thereof, in each instance, the following figure:- 57.

198 SECTION 4. Subsection (b) of section 46 of said chapter 7C, as so appearing, is hereby

199 amended by striking out, in line 21, the figure “58” and inserting in place thereof the following

200 figure:- 57.

SECTION 5. Subsection (d) of section 51 of said chapter 7C, as so appearing, is hereby amended by striking out, in line 29, the figure “58” and inserting in place thereof the following figure:- 57.

SECTION 6. Subsection (a) of section 53 of said chapter 7C, as so appearing, is hereby amended by striking out, in line 4, the figure “58” and inserting in place thereof the following figure:- 57.

SECTION 7. Section 54 of said chapter 7C, as so appearing, is hereby amended by striking out, in lines 8, 29 and 45, each time it appears, the figure “58” and inserting in place thereof, in each instance, the following figure:- 57.

SECTION 8. Section 56 of said chapter 7C, as so appearing, is hereby amended by striking out, in line 4, the figure “58” and inserting in place thereof the following figure:- 57.

SECTION 9. Section 57 of said chapter 7C, as so appearing, is hereby amended by striking out, in line 3, the figure “58” and inserting in place thereof the following figure:- 57.

SECTION 10. Section 10H of chapter 21A of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in line 33, the words “of \$10 per fish” and inserting in place thereof the following words:- for a recreational fisher of \$10 per fish or \$5 per pound of striped bass or for a commercial fisher of the market value of all catch seized and labeled pursuant to section 12 not to exceed \$10,000.

SECTION 11. Subsection (c) of section 3 of chapter 23I of the General Laws, as most recently amended by section 63 of chapter 238 of the acts of 2024, is hereby amended by striking out the word “Six” and inserting in place thereof the following figure:- 5.

SECTION 12. Section 22 of chapter 25 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out subsection (e) and inserting in place thereof the following subsection:-

(e) A business located in the commonwealth that performs energy efficiency services may only be appointed to the energy efficiency advisory council, under subsection (a), if the business is elected by a majority of businesses performing energy efficiency services in the Mass Save program.

SECTION 13. Section 2HHHH of chapter 29 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting, in lines 6 and 15, after the figure “71”, each time it appears, the following words:- , section 74E of chapter 112, section 18 of chapter 112A.

SECTION 14. Section 2YYYY of said chapter 29, as amended by section 17 of chapter 126 of the acts of 2022, is hereby amended by striking out the second paragraph and inserting in place thereof the following paragraph:-

The secretary may expend, without further appropriation: (i) not more than \$160,000,000 per fiscal year from the fund to expand and support the residential treatment system to treat individuals with a substance use disorder or co-occurring mental health and substance use disorder and to expand and increase access to the 24-hour diversionary system; (ii) not more than \$135,000,000 per fiscal year from the fund to reduce stigma, expand access, support implementation and increase competencies for medications for substance use disorder; (iii) not more than \$35,000,000 per fiscal year from the fund to support access to evidence-based recovery services through peer and paraprofessional services; and (iv) not more than

\$85,000,000 per fiscal year from the fund to ensure appropriate assessment for levels of care utilizing American Society of Addiction Medicine or other evidence-based modalities and to support integration of physical health, mental health and substance use disorder care across all provider settings. To accommodate timing discrepancies between the receipt of revenues and related expenditures, the fund may incur expenses, and the comptroller shall certify for payment, amounts not to exceed the most recent revenue estimate as certified by the MassHealth director, as reported in the state accounting system. Amounts credited to the fund shall not be subject to further appropriation and money remaining in the fund at the end of a fiscal year shall not revert to the General Fund and shall be available for expenditure in the subsequent fiscal year.

SECTION 15. Section 2FFFFFF of said chapter 29, as inserted by section 58 of chapter 140 of the acts of 2024, is hereby amended by striking out subsection (c) and inserting in place thereof the following subsection:-

(c) The secretary shall annually expend money in the fund, including all amounts credited to the fund, for payments to Medicaid managed care organizations, as such term is defined in section 64 of chapter 118E; provided that such amounts expended annually shall be not less than the Medicaid managed care organization revenue amount, as such term is defined in said section 64; provided further, that such expenditures shall be consistent with all approved federal waivers and state plan provisions.

SECTION 16. Chapter 29 of the General Laws is hereby further amended by inserting after section 2KKKKKK the following section:-

Section 2LLLLLL. There shall be established and set up on the books of the commonwealth a separate non-budgeted fund known as the Economic Resiliency and Federal

Response Fund. The fund shall be credited with: (i) appropriations or other money authorized or transferred by the general court and specifically designated to be credited to the fund; (ii) funds from public and private sources, including, but not limited to, gifts, grants and donations; and (iii) any interest earned on such money. Amounts credited to the fund shall be expended, subject to appropriation, to ensure that the commonwealth remains resilient against any economic and budgetary impacts caused by federal policy changes. Money remaining in the fund at the end of each fiscal year shall not revert to the General Fund. The fund shall not be subject to section 5C.

SECTION 17. Chapter 31 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following section:-

Section 78. Following their original appointment and oath as a permanent full-time environmental police officer in the police force of the office of law enforcement established by section 10A of chapter 21A, a person shall perform the duties of such position on a full-time basis for a probationary period of 12 months before they shall be considered a full-time tenured employee in such position. The administrator, with the approval of the commission, may establish procedures to ensure the evaluation by appointing authorities, prior to the end of such probationary period, of the performance of persons appointed as police officers in such force. Unless otherwise provided by civil service rule, and with appropriate adjustments to the timing of performance evaluations called for therein, the second paragraph of section 34 shall apply to persons covered by this section.

SECTION 18. Clause (a) of subsection (2) of section 26 of chapter 32 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following

287 sentence:- This subdivision shall not apply to a member in service who is not able to perform the
288 essential duties of the member's job by reason of violent act injury, as defined in section 1.

289 SECTION 19. Said section 26 of said chapter 32, as so appearing, is hereby further
290 amended by inserting after subsection (2) the following subsection:-

291 (2½) Section 7 shall apply to any member in service classified in Group 3 who is an
292 officer of the department of state police if the rating board, after an examination of such officer
293 by a registered physician appointed by it, reports in writing to the state board of retirement that
294 such officer is incapacitated for the performance of duty by reason of violent act injury, as
295 defined in said section 1, occurring during the performance and within the scope of their duty
296 and without contributory negligence on their part, and that such incapacity is likely to be
297 permanent.

298 SECTION 20. Section 56 of chapter 41 of the General Laws, as appearing in the 2022
299 Official Edition, is hereby amended by striking out, in lines 38 to 41, inclusive, the words "or (ii)
300 the payment of software licenses, software maintenance agreements or online subscription
301 services for school curriculum prior to the fiscal year in which services shall be rendered" and
302 inserting in place thereof the following words:- (ii) the payment of software licenses, software
303 maintenance agreements or online subscription services for school curriculum prior to the fiscal
304 year in which services shall be rendered; or (iii) the payment of estimates issued by utilities for
305 make-ready work to facilitate access to utility poles, conduits, ducts or rights-of way related to
306 broadband infrastructure projects.

307 SECTION 21. Section 7 of chapter 66 of the General Laws, as appearing in the 2022
308 Official Edition, is hereby amended by adding the following sentence:- Subject to the Health

Insurance Portability and Accountability Act of 1996, P.L. 104–191, the American Recovery and Reinvestment Act of 2009, P.L. 111–5, 42 C.F.R. Part 2, 42 U.S.C. 290dd-2, and 45 C.F.R. §§ 160, 162 and 164, all records from state institutions for individuals with intellectual or developmental disabilities or mental health conditions in the commonwealth shall be open to public inspection and available for copying after the expiration of 75 years from creation of the record.

SECTION 22. Chapter 112 of the General Laws is hereby amended by inserting after section 74D the following section:-

Section 74E. (a) The board of registration in nursing within the department of public health in the executive office of health and human services may obtain a state and national fingerprint-based criminal background check, as authorized by Public Law 92-544, to determine the suitability of an applicant for a license to practice nursing pursuant to sections 74, 74A, 76 and 80B including but not limited to registered nurses, licensed practical nurses and advanced practice registered nurses.

(b) Registered nurses subject to background checks pursuant to this section are individuals who hold ultimate responsibility for direct and indirect nursing care and are seeking licensure as a registered nurse pursuant to this chapter. Registered nurses provide nursing care, health maintenance, teaching, counseling, planning and restoration for optimal functioning and comfort, of patients they serve within the commonwealth. For the purposes of this section, “advanced practice registered nurse” shall mean a registered nurse authorized by the board of registration in nursing to perform an expanded scope of practice when caring for patients in the commonwealth consistent with section 80B.

(c) Licensed practical nurses subject to background checks pursuant to this section shall be individuals who are seeking licensure as a practical nurse pursuant to this chapter and seeking to provide nursing care and health maintenance services to patients within the commonwealth.

(d) An individual applying to the board of registration in nursing within the department of public health in the executive office of health and human services for a license to practice nursing, in addition to other requirements specified in law, shall submit a full set of fingerprints to the identification section of the Massachusetts state police to obtain a state and national fingerprint-based criminal background check, as authorized by Public Law 92-544, to determine the suitability of any applicant for licensure.

(e) Fingerprints shall be submitted to the identification section of the Massachusetts state police for a state criminal history check and forwarded to the Federal Bureau of Investigation for a national criminal history check in accordance with the policies and procedures established by the identification section and by the department of criminal justice information services. Fingerprint submissions may be retained by the Federal Bureau of Investigation, the state identification section of the Massachusetts state police, and the department of criminal justice information services to assist the board of registration in nursing to ensure the continued suitability of these licensees and persons subject to criminal background checks under this section. The department of criminal justice information services may disseminate the results of the state and national criminal background checks to authorized staff employed by the department of public health and board of registration in nursing.

(f) Each applicant shall pay a fee to be established by the secretary of administration and finance, in consultation with the secretary of public safety, to offset the costs of operating and

administering a fingerprint-based criminal background check system. The secretary of administration and finance, in consultation with the secretary of public safety, may increase the fee accordingly if the Federal Bureau of Investigation increases its fingerprint background check service fee. Any fees collected from fingerprinting activity under this section shall be deposited into the Fingerprint-Based Background Check Trust Fund established in section 2HHHH of chapter 29.

(g) The board of registration in nursing may use the results of the criminal history record check for the sole purpose of determining the applicant's eligibility for a license to practice nursing. The department of public health and board of registration in nursing shall not disseminate the criminal history record check information to any other entity.

(h) The department of public health and board of registration in nursing may receive all available criminal offender record information, juvenile adjudications and delinquency matters, sealed records and the results of checks of state and national criminal history information databases under said Public Law 92-544. Upon receipt of the results of the state and national criminal background checks, the department of public health, board of registration in nursing, and authorized staff shall treat the information according to sections 167 to 178, inclusive, of chapter 6 and the regulations thereunder regarding criminal offender record information.

(i) The board of registration in nursing may promulgate regulations necessary to carry out the provisions of this section.

SECTION 23. Sections 1 through 5, inclusive, of chapter 113 of the General Laws are hereby repealed.

SECTION 24. Section 64 of chapter 118E of the General Laws, as amended by chapter 140 of the acts of 2024, is hereby amended by striking out the definition of “Managed care organization reinvestment amount” and inserting in place thereof the following 3 definitions:-

“Managed care organization services assessment rate”, the rate calculated annually by dividing the non-Medicaid managed care organization services revenue amount by the total managed care organization services subject to assessment that are not Medicaid managed care organization services subject to assessment.

“Medicaid managed care organization revenue amount”, an amount calculated annually by multiplying the Medicaid managed care organization services subject to assessment by the managed care organization services assessment rate.

“Non-Medicaid managed care organization revenue amount”, an amount equal, for each calendar year, to the sum of the following in the same year less \$20,000,000: (i) the health safety net managed care organization revenue amount; (ii) the Massachusetts Child Psychiatry Access Project revenue amount; (iii) the immunization revenue amount; (iv) the health policy commission revenue amount; (v) the center for health information and analysis revenue amount; (vi) the amount transferred, pursuant to section 66, to the Behavioral Health Access and Crisis Intervention Trust Fund established in section 2WWWW of chapter 29; and (vii) the amounts necessary to incorporate prospectively all adjustments or reconciliations to account for under-assessments in the prior year.

SECTION 25. Said section 64 of said chapter 118E, as so amended, is hereby further amended by striking out the definition of “Total managed care organization services revenue amount” and inserting in place thereof the following definition:-

396 “Total managed care organization services revenue amount”, an amount equal, for each
397 calendar year, to the sum of the following in the same year: (i) the Medicaid managed care
398 organization revenue amount, and (ii) the non-Medicaid managed care organization revenue
399 amount.

400 SECTION 26. Section 66 of said chapter 118E, as so amended, is hereby amended by
401 striking out the words “managed care organization reinvestment” each time they appear and
402 inserting in place thereof, in each instance, the following words:- Medicaid managed care
403 organization revenue.

404 SECTION 27. Said section 66 of said chapter 118E, as so amended, is hereby further
405 amended by striking out the words “total managed care organization services assessment ” each
406 time they appear and inserting in place thereof, in each instance, the following words:- non-
407 Medicaid managed care organization revenue.

408 SECTION 28. Section 74 of said chapter 118E, as so appearing, is hereby amended by
409 striking out subsection (k) and inserting in place thereof the following 2 subsections:-

410 (k) The council may contract with a provider of a pooled employer plan as defined in 29
411 USC§ 1002(43), on behalf of consumers and their personal care attendants.

412 (l) The council may perform other acts necessary or convenient to execute the powers
413 expressly granted to it.

414 SECTION 29. Section 36 of chapter 123 of the General Laws, as appearing in the 2022
415 Official Edition, is hereby amended by inserting after the second sentence the following 3
416 sentences:-

There shall be a rebuttable presumption that disclosure of patient records more than 50 years after the death of the patient is in the best interest of the patient provided that: (i) the records are facility records; and (ii) the requestor is a close relative or engaged in academic research. The department shall make best efforts to redact any personal identifying information of living individuals in such patient records in order to avoid undue invasion of privacy. The department shall promulgate regulations in collaboration with the department of developmental services to implement this rule.

SECTION 30. Section 17 of chapter 123B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the second sentence the following 3 sentences:-

There shall be a rebuttable presumption that disclosure of patient records more than 50 years after the death of the patient is in the best interest of the patient, provided that: (i) the records are facility records; and (ii) the requestor is a close relative or engaged in academic research. The department shall make best efforts to redact any personal identifying information of living individuals in such patient records in order to avoid undue invasion of privacy. The department shall promulgate regulations in collaboration with the department of mental health to implement this rule.

SECTION 31. Said section 17 of said chapter 123B, as so appearing, is hereby further amended by adding the following 3 sentences:-

Each facility, subject to this chapter and section 7 of chapter 19B, shall maintain resident records, for at least 20 years after the closing of the record due to discharge, death or last date of service. A facility shall not destroy such records until after the retention period has elapsed and

only upon notifying the department of public health that the records will be destroyed, provided that the department shall promulgate regulations further defining an appropriate notification process. On the notice of privacy practices each facility shall include, but not be limited to: (i) information concerning the provisions of this section; and (ii) the facility's records termination policy.

SECTION 32. Section 2 of chapter 130 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting, in line 39, after the word "chapter," the following words:- or any rule or regulations made under authority of this chapter.

SECTION 33. The second paragraph of section 21 of said chapter 130, as so appearing, is hereby amended by adding the following sentence:- Refusal or failure to submit or knowing submission of a false statistical report shall constitute a violation of this chapter.

SECTION 34. Section 80 of said chapter 130, as so appearing, is hereby amended by inserting after the first sentence the following sentence:- No person shall fish for or take fish for commercial purposes in the coastal waters, or land raw fish, whether frozen or unfrozen, in the commonwealth, for the purpose of sale, in violation of a commercial fisherman permit.

SECTION 35. Section 44H of chapter 149 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in lines 6 and 7, the words "sections 38C to 38N, inclusive, of chapter 7" and inserting in place thereof the following words:- sections 44 to 57, inclusive, of chapter 7C.

SECTION 36. Said section 44H of said chapter 149, as so appearing, is hereby further amended by striking out, in line 14, the words "said sections 38C to 38N, inclusive" and inserting in place thereof the following words:- said sections 44 to 57, inclusive, of chapter 7C.

SECTION 37. Subsection (d) of section 12 of chapter 159A1/2 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting, in line 66, after the words “protection,” the following words:- the department of energy resources, the Massachusetts clean energy technology center,

SECTION 38. Subsection (c) of section 7 of chapter 161A of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in line 41, the figure “4” and inserting in place thereof the following figure:- 5.

SECTION 39. Said section 7 of said chapter 161A, as so appearing, is hereby further amended by striking out subsection (f) and inserting in place thereof the following subsection:-

(f) The board shall establish subcommittees, which shall include at a minimum a subcommittee on: (i) safety, health and environment; (ii) planning, workforce development and compensation; and (iii) audit and finance. Each member shall participate on up to 2 subcommittees of the board. Each subcommittee shall have at minimum 3 board members. The appointee of the governor who has experience in safety shall chair the subcommittee on safety, health and environment. The appointee of the governor who has experience in public or private finance shall chair the subcommittee on audit and finance. In the case of a vacancy of either the appointee who has experience in safety or of the appointee who has experience in public or private finance, the board chair shall designate a subcommittee member to serve as acting chair until such time as the vacancy has been filled.

SECTION 40. Said section 7 of said chapter 161A, as so appearing, is hereby further amended by striking out subsection (i) and inserting in place thereof the following subsection:-

(i) The board shall meet as determined by the chair, but shall meet not less than 10 times per calendar year.

SECTION 41. Section 69O1/2 of chapter 164 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in line 8, the word “62H” and inserting in place thereof the following word:- 62L.

SECTION 42. Subsection (a) of section 69T of said chapter 164, as inserted by section 74 of chapter 239 of the acts of 2024, is hereby amended by striking out the words “petition to construct such” and inserting in place thereof the following words:- application for a consolidated permit for the clean energy infrastructure

SECTION 43. Subsection (b) of section 69U of said chapter 164, as so inserted, is hereby amended by striking out, in the third sentence, the words “subsections (d)” and inserting in place thereof the following words:- subsections (e).

SECTION 44. Subsection (b) of section 69V of said chapter 164, as so inserted, is hereby amended by striking out the word “(g)” and inserting in place thereof the following word:- (h).

SECTION 45. Section 12 of chapter 188 of the acts of 2016 is hereby amended by striking out, the first time it appears, the figure “2027” and inserting in place thereof the following figure:- 2029.

SECTION 46. Said section 12 of said chapter 188 is hereby further amended by striking out, in subsection (b), the following words:- and shall specify that any subsequent solicitation shall occur within 24 months of a previous solicitation.

SECTION 47. Chapter 209 of the acts of 2018, as amended by chapter 364 of the acts of 2024, is hereby further amended by striking out section 89 and inserting in place thereof the following section:-

Section 89. There shall be established and set up on the books of the commonwealth a separate, non-budgeted special revenue fund called the Woodlands Partnership of Northwest Massachusetts Fund, which shall be administered by the Woodlands Partnership of Northwest Massachusetts Board established pursuant to section 91. Amounts credited to the fund shall be expended without further appropriation. There shall be credited into the fund revenues or other financing sources directed to the fund by appropriation or other monies authorized by the general court and specifically designated to be credited to the fund, any income derived from the investment of amounts credited to the fund and monies from the repayment of loans from the fund, funds from public or private sources including, but not limited to, gifts, federal, state, or private grants, donations, rebates and settlements received by the commonwealth that are specifically designated to be credited to the fund and all other amounts credited or transferred into the fund from any other source. Amounts credited to said fund shall be used solely for implementing the purposes and administration of the Woodland Partnership of Northwest Massachusetts established in section 91. The unexpended balance in the fund at the end of a fiscal year shall remain available for expenditure in subsequent fiscal years. No expenditure from the fund shall cause the fund to be in deficit at any point.

SECTION 48. Said chapter 279, as so amended, is hereby further amended by striking out, the first time they appear, the words “capital expenditure authorizations,”.

SECTION 49. Chapter 4 of the acts of 2021 is hereby amended by striking out section 9 and inserting in place thereof the following section:-

Section 9. Notwithstanding any general or special law to the contrary, the bonds that the state treasurer may issue under section 34 of chapter 383 of the acts of 2020, as amended by section 1 of chapter 4 of the acts of 2021, shall be issued for a term not to exceed 30 years. All such bonds shall be payable not later than June 30, 2065, as recommended by the governor in a message to the general court dated August 14, 2025 under section 3 of Article LXII of the Amendments to the Constitution.

SECTION 50. Notwithstanding any general or special law to the contrary, section 18 of chapter 28 of the acts of 2023 shall not be in effect for the purposes of establishing the annual spending threshold for the fiscal year ending June 30, 2027.

SECTION 51. Notwithstanding any general or special law to the contrary, chapter 140 of the acts of 2024 is hereby amended by striking out subsection (a) of section 222.

SECTION 52. Item 3000-4060 of section 2 of said chapter 140 is hereby amended by adding the following words:-

General Fund...88.02%

High-Quality Early Education & Care Affordability Fund...11.98%

SECTION 53. Item 1599-2625 of section 2A of chapter 1 of the acts of 2025 is hereby amended by adding the following words:- and provided further, that the comptroller shall transfer \$5,995,058 from this item to the Federal Grants Fund for the purposes of item 4000-0004.

SECTION 54. Section 1 of chapter 7 of the acts of 2025 is hereby amended by inserting at the end thereof the following words:- These sums shall be made available through the fiscal year ending June 30, 2026.

SECTION 55. Item 4403-2000 of said section 2 of chapter 9 of the acts of 2025 is hereby amended by striking out the words “prior appropriation continued”.

SECTION 56. Item 4408-1000 of said section 2 of said chapter 9 is hereby amended by striking out the words “prior appropriation continued”.

SECTION 57. Notwithstanding section 3 of chapter 53 of the General Laws or any other general or special law to the contrary, a person whose name is not printed on the September 1, 2026 state primary ballot as a candidate for an office, but who receives sufficient votes to nominate the person for the office, shall file in the office of the state secretary a written acceptance of the nomination and a receipt from the state ethics commission verifying that a statement of financial interest has been filed pursuant to chapter 268B not later than 5:00 P.M. on Thursday, September 3, 2026.

SECTION 58. Notwithstanding sections 11, 13 and 53A of said chapter 53 and section 5 of chapter 55B of the General Laws or any other general or special law to the contrary, objections to and withdrawals from nominations made at the September 1, 2026 state primary shall be filed with the state secretary not later than 12:00 P.M. on Friday, September 4, 2026.

SECTION 59. Notwithstanding section 14 of said chapter 53 or any other general or special law to the contrary, any vacancies from the September 1, 2026 state primary caused by death, withdrawal or ineligibility under section 3 shall be filled by an executive committee,

565 determined by the state party committee, of the same political party who made the original
566 nomination.

567 SECTION 60. Notwithstanding section 15 of said chapter 53 or any other general or
568 special law to the contrary, when a nomination is made to fill a vacancy caused by the death,
569 withdrawal or ineligibility of a candidate from the September 1, 2026 state primary, the
570 certificate of nomination shall be on a form prescribed by the state secretary, shall be signed by
571 the executive committee appointed by the state committee of the same political party as provided
572 for in section 4 and shall be filed with the state secretary not later than 5:00 P.M. on Tuesday,
573 September 8, 2026.

574 SECTION 61. Notwithstanding section 28 of said chapter 53 or any other general or
575 special law to the contrary, the state primary in 2026 shall be held on Tuesday, September 1,
576 2026.

577 SECTION 62. Notwithstanding section 135 of chapter 54 of the General Laws or any
578 other general or special law to the contrary, a petition for a recount of the September 1, 2026
579 state primary shall be filed with the appropriate local election officials not later than 5:00 P.M.
580 on Thursday, September 3, 2026 and all recounts shall be completed and notice of the results
581 shall be sent to the state secretary not later than 5:00 P.M. on Friday, September 11, 2026.

582 Petitions for district wide and statewide recounts of the September 1, 2026 state primary
583 shall be submitted to the appropriate local election officials for certification not later than 3:00
584 P.M. on Thursday, September 3, 2026 and local election officials shall complete certification not
585 later than 12:00 P.M. on Friday, September 4, 2026. Thereafter, certified petitions shall be filed
586 with the secretary of state not later than 5:00 P.M. on Friday, September 4, 2026. If the state

secretary determines that the contest is eligible for a statewide or district wide recount, the state secretary shall notify the local election officials who shall complete the recount and shall notify the state secretary of the results of the recount not later than 5:00 P.M. on Friday, September 11, 2026.

SECTION 63. Notwithstanding sections 8 to 10, inclusive, of chapter 55B of the General Laws or any other general or special law to the contrary, the state ballot law commission shall notify candidates of any objections filed to nominations at the September 1, 2026 state primary not later than 5:00 P.M. on Friday, September 4, 2026. Notice of the commission hearings shall be given by telephone and electronic mail. Hearings on objections shall be held on Wednesday, September 9, 2026 and decisions shall be rendered not later than 5:00 P.M. on Friday, September 11, 2026.

SECTION 64. Notwithstanding section 68 of chapter 118E of the General Laws, as amended by chapter 140 of the acts of 2024, or any other general or special law to the contrary, the secretary of health and human services shall implement the health care related assessment on managed care organization services, established under said section 68 of said chapter 118E, as a broadbased and uniform assessment, in accordance with 42 CFR 433.68(b), with the managed care organization services assessment rate, as such term is defined in section 64 of said chapter 118E, implemented as the single broadbased and uniform rate applicable to all managed care organization services subject to assessment, as such term is defined in said section 64 of said chapter 118E. Upon converting the health care related assessment on managed care organization services to a broadbased and uniform assessment applicable to all managed care services subject to assessment, as such term is defined in said section 64 of said chapter 118E, the initial managed care organization services assessment rate shall be equal to the rate that had been

applicable to the tax group containing commercial managed care services immediately preceding the implementation of the broadbased and uniform application of the assessment. The managed care organization services assessment rate for each calendar year, beginning the first January 1 following the conversion of the health care related assessment on managed care organization services to a broadbased and uniform assessment, shall be broadbased and uniform across all managed care services subject to assessment and shall continue to be implemented in a manner consistent with 42 CFR 433.68.

SECTION 65. Notwithstanding chapter 81 of the acts of 2022 or any general or special law to the contrary, a specifically named individual's driving record shall be a public record, provided that disclosure is subject to all applicable statutory and common law exemptions, including redacting or withholding any information relating to the specifically named individual the disclosure of which may constitute an unwarranted invasion of personal privacy, including but not limited to an individual's personal address or social security number under subclause (c) of clause 26 of section 7 of chapter 4 of the General Laws.

For purposes of this section, "driving record" shall mean the record maintained by the registry of motor vehicles that lists all civil and criminal violations incurred by a specifically named individual under section 27 of chapter 90 of the General Laws or as the result of any administrative action taken by the registrar of motor vehicles; provided, that "driving record" shall not include any other information, correspondence, or source materials provided by or relating to an applicant for a Massachusetts license under section 8 of chapter 90 of General Laws or a learners permit under section 8B of said chapter 90, except as otherwise provided by law.

SECTION 66. Notwithstanding any general or special law to the contrary, to the extent that immunization recommendations and requirements established in the commonwealth are conditioned upon alignment with the recommendations made by the Advisory Committee on Immunization Practices of the federal Centers for Disease Control and Prevention, the commissioner of public health shall review said recommendations and requirements established in the commonwealth and shall, in consultation with the vaccine program advisory council established by section 24N of chapter 111 of the General Laws, establish alternative standards as the commissioner may deem necessary to assure the maintenance of public health and the prevention of disease in the commonwealth.

SECTION 67. Notwithstanding any general or special law to the contrary, there shall be a moratorium on the destruction of hospital records pursuant to section 36 of chapter 123 of the General Laws until such time as the department of mental health promulgates regulations defining a public notice process for the destruction of such records, as required under said section 36 of said chapter 123, as amended by section 29 of this act.

SECTION 68. Notwithstanding any general or special law to the contrary, there shall be a moratorium on the destruction of hospital records pursuant to section 17 of chapter 123B of the General Laws until such time as the department of developmental services promulgates regulations defining a public notice process for the destruction of such records, as required under said section 17 of said chapter 123B, as amended by sections 30 and 31 of this act.

SECTION 69. Notwithstanding any general or special law to the contrary, at the direction of the secretary of administration and finance, the comptroller shall make tax revenue collected from capital gains income above the threshold established in section 5G of chapter 29 of the

General Laws in fiscal year 2025 available to the General Fund in the amount necessary to eliminate any deficits in the budgetary funds pursuant to section 5C of said chapter 29. After satisfying the previous provision, the comptroller shall transfer any remaining excess capital gains income as follows: (i) 75 per cent to the Economic Resiliency and Federal Response Fund established in section 2LLLLLL of said chapter 29; and (ii) 25 per cent to the Commonwealth Stabilization Fund established in section 2H of said chapter 29.

SECTION 70. Notwithstanding any general or special law to the contrary, in fiscal year 2025, the comptroller shall transfer \$150,000,000 from income surtax revenue, as defined by subsection (a) of section 2BBBBBB of chapter 29 of the General Laws, to the Student Opportunity Act Investment Fund established in section 35RRR of chapter 10 of the General Laws.

SECTION 71. Notwithstanding any general or special law to the contrary, in fiscal year 2025, the comptroller shall not make any adjustments to amounts previously transferred pursuant to subsection (c) of section 5I of chapter 29 of the General Laws if income surtax revenue as defined by subsection (a) of section 2BBBBBB of said chapter 29 differs from the amounts estimated as of the July 20 certification pursuant to subsection (a) of said section 5I of said chapter 29; provided, that, at the direction of the secretary of administration and finance, the comptroller shall make any necessary adjustments to the funding sources of existing appropriations to ensure the use of income surtax revenue meets constitutional spending requirements.

SECTION 72. Notwithstanding any general or special law to the contrary, the comptroller shall transfer the fiscal year 2025 consolidated net surplus pursuant to section 5C of

chapter 29 of the General Laws to the Economic Resiliency and Federal Response Fund established in section 2LLLLLL of chapter 29 of the General Laws.

SECTION 73. Notwithstanding any general or special law to the contrary, in fiscal year 2026, at the direction of the secretary of administration and finance, the comptroller shall transfer up to \$200,000,000 from the Economic Resiliency and Federal Response Fund established in section 2LLLLLL of chapter 29 of the General Laws to the General Fund.

SECTION 74. Notwithstanding any general or special law to the contrary, in fiscal year 2025, the comptroller shall transfer \$20,000,000 from the General Fund to the Massachusetts Life Science Center established in section 3 of chapter 23I of the General Laws for programming and operations that advance efforts related to life sciences and spurs economic growth in the commonwealth.

SECTION 75. Notwithstanding any general or special law to the contrary, local election officials shall transmit absentee ballots to voters covered under the federal Uniformed and Overseas Citizens Absentee Voting Act, 42 U.S.C. §§ 1973ff-1 et seq., whose applications were received at least 45 days before the November 3, 2026 state election, not later than Saturday, September 19, 2026.

SECTION 76. Notwithstanding any general or special law to the contrary, the state secretary shall have the authority to add or change any dates relating to the nominations made at the September 1, 2026 state primary that the state secretary considers necessary for the orderly administration of the November 3, 2026 state election by providing notice of the change to the state parties and any affected person, by filing notice with the publications and regulations

697 division, by posting on the state secretary's website and by whatever other means the state
698 secretary considers appropriate.

699 SECTION 77. The registrar of motor vehicles shall promulgate regulations to implement
700 section 65 of this act no later than March 31, 2026.

701 SECTION 78. Sections 15, 24 to 27, inclusive, and 64 shall take effect on the later of (i)
702 the effective date of amendments to 42 CFR 433.68 disallowing the higher taxation of Medicaid
703 taxable units as compared to non-Medicaid taxable units; or (ii) the end of any federally
704 established or approved transition period applicable to the health care related assessment on
705 managed care organization services, established under section 68 of chapter 118E of the General
706 Laws, as amended by section 122 of chapter 140 of the acts of 2024.

707 SECTION 79. Section 65 shall take effect on March 31, 2026.